



Offer Letter

Date: 24-Sep-25

TO, MR. Vaibhav Tyagi

This has reference to the discussion you had with us. We confirm our intent to offer you a position for **Digitech Call System Private Limited** (hereinafter referred to as "the company") on terms and conditions (as per Annexure – I & II) stipulated herein below:

Designation: **Customer Care Executive**

Date of joining not later than: **16-Jan-25**

Salary (Monthly): **Rs.15700/- (CTC)**

Your offer has been made based on the information furnished by you and the competence claimed by you. However, if there is a discrepancy in the copies of the documents / certificates given by you as a proof of the above, we may have the option to review our offer of employment. The offered remuneration includes deductions like EPF, ESI, TDS, etc. if applicable.

At the time of joining, please bring the following documents in their photocopies for joining formalities

1. Photographs (4 Passport Size)
2. All educational certificates
3. Relieving Certificate from all the employers (if employed previously)
4. Proof of Last drawn salary (Last 3 Months Salary Slip along with Bank Statement)
5. Valid ID Proof - Passport / Driving License / Voter ID / PAN Card / Aadhar Card

Please sign and return the duplicate copy of this letter in token of your acceptance of terms of this letter.

Looking forward to a long and mutually beneficial association!

Yours Faithfully,

For Digitech Call System Private Limited



Candidate Signature

Authorized Signatory



+120 6365200



info@digitechcallsystem.com
www.digitechcallsystem.com



A 14 / 15, Sector 59,
Noida 201301, UP, India



Annexure - I

1. Salary

You hereby agree that all amounts payable by the Company under this Offer Letter will be inclusive of all taxes and will be subject to such withholding of taxes or taxes deducted at source, as may be required under applicable law(s) from time to time. The Company assumes no responsibility for your personal tax affairs and your tax liability in respect of your compensation (including the responsibility of filing your income-tax returns) which shall be entirely your responsibility.

2. Working Hours & Shift

- Your employment will be full-time; 6 Day's working.
- The company operates 24 hours a day, 7 days a week. You will be expected to attend office 6 days a week – except when travelling on business – during the work hours/shifts as decided by the company.
- Your Attendance will be marked on the basis of Bio-metric Net Login Hours, which leads that if net login hours <4:30 hours, it will be marked as absent. If Net login hours are in between 4:30-8:59 hours, it will be marked as Half day. Only if your Net login hours >=9:00 hours, then only your complete day Present is marked.

3. Place of Posting and Reporting

Your present place of posting will be at **Noida**. You are however liable to be transferred at the discretion of the management of the Company to any other department/process/establishment/sister concern/subsidiary of the Company, owned/controlled or operated by the Company at present and/or acquired in the future, in India or overseas. Upon such transfer the rules, regulations, terms and conditions of service applicable to such post and place shall be applicable to you. In addition, you shall travel to such parts of India and the world as the management of the Company may direct or authorize. You are liable to perform duties as assigned to you by the management of the Company. Your title and reporting structure are subject to change at the sole discretion of the management of the Company. Your refusal for such transfer will be considered as your unwillingness to serve the Company and the Company will be free to terminate your services.

4. Probation

This letter is to confirm that your employment will begin with a six (6) month probationary period, during this period your performance will be assessed and your appointment with company shall be confirmed. Basis your performance management can extend your probation period at their discretion.

5. Mode of Notification

- All notices/correspondence required to be given pursuant to this Offer Letter and with respect to your services shall be deemed given, if and when they are personally delivered, delivered by fax or courier or speed post or by overnight mail delivery, in writing to you at the address stated above or at another address intimated by you in writing to the Company. You shall immediately intimate the Company in writing, about any change of





address. In absence of your doing so, any notice/communication/correspondence addressed to you and sent to your last known address, shall be deemed to have been served on you.

- Any notices/correspondence required or permitted to be given under this Offer Letter by you to the Company shall be given in writing and delivered by fax or courier or speed post or by overnight mail delivery. They shall be addressed to Head HR and shall be at A 14/15, Sector – 59, Noida - 201301.

6. Resignation

- During the probation or any extended period of probation, if you wish to resign from the services of the Company, you may do so, by giving a prior 3 month notice in writing or 3-month gross salary in lieu thereof.
- Any notice of resignation shall not be effective if it is given during the leave period and you shall not be entitled to proceed on leave during the serving of your notice period.
- In case any disciplinary and /or legal proceeding is pending or contemplated against you, the management of the Company may refuse your resignation and, in such case, your resignation shall not take effect till the management of the Company accepts it.
- Upon resigning, you will not be relieved of your duties, unless the resignation has been accepted in writing by the Company and you have handed over complete charge of your job as well as all materials, articles, documents etc. belonging to the Company that may have come in your possession during the course of your employment with the Company.
- In the event you fail to comply with any of the procedural requirements mentioned in this Offer Letter in relation to the termination/resignation of your employment with the Company, the Company shall be under no obligation to issue a 'clearance certificate'.

7. Full & Final Settlement

- You shall be responsible and liable to the Company for any outstanding charges, penalties, losses, dues caused by reasons attributable to you during the course of your employment with the Company and the same shall be taken into consideration at the time of the full and final settlement of your dues, if any.
- The Company reserves the right to adjust and/or to deduct any amount from your salary and/or other dues payable to you in case the Company suffers any loss on account of financial irregularities etc. committed by you.
- Your full and final amount shall be settled in 45 to 60 days from the last date of separation from the company.

8. Termination

- During the probation or the extended period of probation, your services can be terminated at any time without assigning any reason with 7 (seven) days' notice or gross salary in lieu thereof. After confirmation, your services are liable for termination at any time without assigning any reason by giving you one month notice or gross salary in lieu thereof.
- Notwithstanding anything contained in this Offer Letter, the Company may terminate your employment summarily, without any period of notice or payment in lieu thereof, if including but not limited to the following:





- i. you are in breach of any of the terms of this Offer Letter and the Undertaking and Indemnity Bond, which breach is either (i) incapable of remedy; or (ii) if capable of remedy, has not been remedied by you within a period of 2 (two) days after receipt of notice of such breach from the Company.
- ii. you are found guilty of moral turpitude, fraud, disobedience, dishonesty or gross negligence, misconduct whether minor or major or such similar activities.
- iii. you are convicted by a Court of competent jurisdiction of an offence or indicted in any offence, which in the opinion of the Company, will detrimentally affect the reputation of the Company.
- iv. you have been found to be of unsound mind by a Court of competent jurisdiction and the finding is in force or you are liable to be dealt with in any way under the laws relating to mental health.
- v. If you misrepresent to the Company in any manner whatsoever and/or if you are found at any time during the tenure of your employment with the Company to have furnished incorrect and/or false information to the management of the Company at the time of your appointment or thereafter.
- vi. If you indulge in anti-company activities.
- vii. If you misuse the property of the Company entrusted to you. If you by virtue of your employment with the Company and your position in the organization obtain any credit or benefit from any of the employees, customers, suppliers or any other person, firm or company whatsoever and take advantage of your position or influence for any personal gain or benefit from anyone.
- viii. If you at any time make an untrue statement in relation to the Company or any associated company and after the termination/resignation of your employment wrongly represent yourself as being employed by or connected in any respect with the Company or any associated company.
- ix. If you, either during or after your employment, make any misleading, derogatory or untrue comments or statements (whether orally or in writing) concerning the Company, any associated company or its respective investors, officers, consultants, employees, customers, prospective customers, suppliers, business partners etc.
- x. All business revenues and fees produced or transacted through the efforts of an employee in his capacity as an employee of the Company are the sole property of the Company. You shall have no right to the revenues other than the compensation/ remuneration provided for in this Offer Letter. The aforesaid list of contingencies is illustrative in nature and is not exhaustive.

9. Abandonment and Automatic Termination

In the event you are continuously absent from your designated office/service for a period of 3 (Three) working days or more for any reason whatsoever without formal request or permission from the management of the Company in writing, you will be deemed to have left the Company and relinquished your employment. Such automatic relinquishment will be deemed as repudiation of the employment with the Company by you without notice and not as a termination of employment by the Company and accordingly, appropriate steps shall be taken against you for having terminated the employment without proper notice.





10. Rules and Regulations

- You will be bound by all policies, rules and regulations enforced by the management of the Company and which may be amended from time to time. You shall be required to maintain the highest standards of personal conduct and integrity and keep yourself informed of and comply with all company policies, rules and procedures and modifications therein.
- You shall devote your whole time and full attention solely and exclusively to the work of the Company to the best of your skills and abilities. You shall not engage in any other activity of a similar, rival nature which may prejudicially affect the interests of the Company. You shall not work elsewhere in any capacity whatsoever part time or full time either directly or indirectly for remuneration or otherwise at any point of time during the course of your employment with the Company nor shall you engage yourself in any other business of your own or as an agent for others.
- You shall be bound to carry out all lawful orders issued to you by your superiors from time to time.
- You shall use the literature, samples, stationery, data base or any other property of the Company handed over to you for promoting the interests of the Company in an appropriate manner and as directed by the Company. You will ensure that these items and/or the property of the Company are not misused by any unauthorized person, firm/company or by you in any manner whatsoever.
- The Company reserves the right to adjust and/or to deduct any amount from your salary and/or other dues payable to you in case the Company suffers any loss on account of financial irregularities etc. committed by you.

11. Confidentiality

- You will maintain secrecy and confidentiality of your salary structure, data, other information and knowledge gained during your employment. You will not make use of such information and knowledge or disclose the same to any person, firm, corporation or entity either inside or outside of India, except as expressly and specifically asked to do so by the management of the Company. You shall in the ordinary course of your employment under this Offer Letter be exposed to information about the business of the Company or any associated companies and that of their suppliers, customers, clients etc. which amounts to a trade secret, is confidential or is commercially sensitive and which may not be readily available to others engaged in a similar business to that of the Company or any associated company or to the general public and/or which if disclosed would be liable to cause significant harm to the Company or any associated company and you shall not disclose the same.
- You shall keep secret and shall not at any time either during your employment under this Offer Letter, or after termination/resignation, for whatever reason, use communicate or reveal to any person for either your own or another's benefit, any secret or confidential information concerning the business, finances of the Company or any associated company, its suppliers customers or clients which shall have come to your knowledge during the course of your employment under this Offer Letter. You shall also at all times use your best endeavors to prevent the publication or disclosure of any such information.
- You shall under no circumstances use the Confidential Information in connection with any arrangement that you may have with any third party at a future point of time nor shall you





use the information for your own purposes.

- For the purposes of this clause and by way of illustration and not limitation, information will prima facie be secret and confidential if it is not in the public domain and relates to:
 1. the Company, its group companies, clients, employees, customers, suppliers, its affairs, operations, business methods or work systems;
 2. costing, profit margins, discounts, rebates and other financial information;
 3. marketing strategies and tactics;
 4. current activities and current and future business plans;
 5. the development of new products;
 6. production or design secrets;
 7. any business relationship, arrangement, contract or transaction between the Company and any person (including this Agreement, any communications between the parties in connection with this Agreement); or
 8. any other material which is either marked "confidential" or is by its nature intended to be confidential or otherwise meant exclusively for your knowledge alone or which is proprietary to the Company and/or its group companies and any other information, analyses, compilations, notes, studies or other documents derived from, containing or reflecting such information.
- You shall not divulge to anybody by word of mouth or otherwise, particulars, details of the working of the Company, technical know-how, security arrangements, administrative and organizational matters of confidential and secret nature etc. unless compelled to do so by judicial authority in which case you shall provide the Company with prompt notice of your intent to make such disclosure so as to afford the Company with an opportunity to seek a protective order or other appropriate remedy, and shall provide the Company with reasonable cooperation and assistance in any effort to obtain such relief. In the event you are legally required to disclose Confidential Information as provided, you will furnish only that portion of the Confidential Information that is legally required to be disclosed and will use reasonable efforts to obtain assurance that confidential treatment will be accorded to the Confidential Information that is so disclosed by you.
- You will not whether during or after the term of your employment, reproduce, store in a retrieval system or transmit outside the Company in any form or by any means (whether electronic, mechanical, photocopying, recording, scanning or otherwise) any Confidential Information, for your own benefit or for the benefit of any third party.
- Upon your termination/resignation, you shall return and surrender to the Company, all Confidential Information including data, information, files, books, magazines, reports, documents, manuals, audio and video tapes, floppies and discs and any other knowledge databases etc. that were entrusted to you in the course of your employment and will not retain any copy thereof in any form. The Company may, in its sole discretion, deduct the value of the property not returned by you in the full and final settlement payable to you.
- This is the code of business conduct and violation of this code would amount to strict disciplinary action including but not limited to termination of your employment.





12. Suspension:

You can be suspended from service for any sufficient cause including pending enquiry into a misconduct, insubordination, insult or disobedience to any of your superiors or client, gross neglect of work, non-performance, carelessness, damage of equipment, property of the Company, interfering with the records of the Company etc. on payment of a subsistence allowance which would not be more than gross salary drawn by you immediately before suspension. If you are held guilty of misconduct, you will not be entitled to any salary, dues etc. for the suspension period other than the subsistence allowance as aforesaid. In case, however, you are not found guilty, you will be paid the relevant salary for the suspension period and treated as if you had been in service during this period.

13. Non-Compete Obligations

- You shall not, during the course of your employment and for a period of Five years after the termination/resignation of your employment from the Company:
 - i. directly or indirectly, manage, establish, operate, consult, be engaged, involved, employed or interested in any manner in any entity, business or venture which is in competition with the business of the Company;
 - ii. either on your own behalf or on behalf of any other person or persons either act for or canvass, solicit or approach or cause to be canvassed, solicited or approached for orders or instructions (in each case in respect of any goods or services provided or supplied by the Company or any subsidiary) any person or persons who at any time during the preceding 5 (five) year(s) or (following such termination/resignation) at any time within 5 (five) year(s) prior to such termination/resignation is or was a client or customer of the Company or any subsidiary or was negotiating to become a client or customer of the Company or any subsidiary;
 - iii. either on your own behalf or on behalf of any other person sell or otherwise supply in India/overseas any goods and/or render any services which are/were sold, supplied and/or rendered in either case by the Company or any subsidiary to any person or persons who at any time during the preceding 5 (five) year(s) or (following such termination/resignation) at any time within 5 (five) year(s) prior to such termination/resignation is or was a client or customer of the Company or any subsidiary actively doing business with it;
 - iv. interfere or seek to interfere or take such steps as may interfere with the continuance of supplies to the Company or any subsidiary (or the terms relating to such supplies) from any suppliers who have been supplying goods or services to the Company or any subsidiary at any time during the preceding 5 (five) year(s) or (following such termination/resignation) at any time during the 5 (five) year(s) prior to such termination/resignation; or
 - v. solicit or entice or endeavor to solicit or entice away from the Company or any subsidiary or knowingly employ or aid or assist any other person or persons in employing or otherwise retaining the services of any employees of or consultants to the Company or any subsidiary.
- You expressly agree that any breach of this clause in any manner, will cause grave and irreparable damage to the Company and accordingly unconditionally and irrevocably agree that should you commit any breach under this clause, the Company shall be entitled to an injunction, restraining order or such other equitable relief as a court of competent jurisdiction may deem necessary or appropriate. You shall also be liable to compensate the Company for any loss and/or damage caused by any act of commission and omission on your behalf in this regard. You further agree and acknowledge that each of the restrictions set out in this clause represent a separate and independent restriction. While the restrictions aforesaid are considered by you and the Company to be reasonable in all the circumstances, it is agreed that if any one or more of such restrictions shall either taken by itself or together be adjudged to go beyond what is reasonable in all the circumstances for the protection of the legitimate interest of the Company and its affiliates, then





such restriction or restrictions shall be severed from this Agreement without affecting the remainder of the other restrictions contained in this clause which shall remain in full force and effect.

14. Dispute Resolution, Jurisdiction and Governing Law

- In the event of any dispute, claim, question or disagreement arising from or relating to this Offer Letter or any breach or alleged breach of any of the terms hereof, the parties hereto will use their best efforts to mutually settle the dispute, claim, question, or disagreement. To this effect, the parties will consult and negotiate with each other in good faith and recognizing their mutual interests, attempt to reach a just and equitable solution satisfactory to each of the parties. If the parties do not reach such solution within a period of 15 (fifteen) days from the date of first notice being sent by one party to the other to initiate such conciliation proceedings, then a separate notice may be served by either party to the other, whereupon all disputes, claims, questions or differences will be finally settled through arbitration in Delhi only (in the English language) and in accordance with the provisions of the Indian Arbitration and Conciliation Act, 1996, as amended, replaced or modified from time to time. The decision of the arbitrator(s) shall be final and binding on the parties.
- This Offer Letter will be governed by and construed in accordance with the laws of India and the courts at New Delhi and NCR shall have exclusive jurisdiction to deal with any matter/ dispute arising out of this.
- Notwithstanding anything herein to the contrary, Clause 4 (Mode of Notification), Clause 12 (Confidentiality), Clause 15 (Non-Compete Obligations), Clause 16 (Dispute Resolution, Jurisdiction and Governing Law) and the Undertaking shall survive any termination of this Agreement. Kindly note that non-compliance of any of the terms of employment would be considered as your unwillingness to serve the Company and in such cases, the Company will be free to terminate your services with immediate effect.

We welcome you to our organization and look forward to having a mutually beneficial long- term association with you.



With Best Wishes!!
HUMAN RESOURCES



Annexure – II

Name	Vaibhav Tyagi	
Designation	Customer Care Executive	
Employee ID	DT09194750	
COST TO COMPANY (CTC)	15700	
Salary Head	Amount Per Month	Amount Per Annum
Monthly Components		
Basic	8500	102000
HRA	4250	51000
Conveyance Allowance	0	0
Medical Reimbursement @	0	0
Special Allowance	2456	29472
Bonus@@	0	0
GROSS SALARY (A)	15206	182472
COMPANY CONTRIBUTION		
PF (Employer)	0	0
ESIC (Employer @ 3.25%)	494	5930
Mediclaime	0	0
Incentive (Performance Based)		
In-hand Salary	15092	181103
COST TO COMPANY [CTC] (C+D)	15700	188400

Acknowledgement

By your signature below you acknowledge that you have read and understand and declare, that you agree to comply with all of the terms of the Agreement, and that you have received a copy of this declaration.

Date:

Signature: _____

Name: